

25STCV33802 25STCV33802

County: los-angeles

Division: Civil Law and Motion

Department: 224

Hearing date: 2026-07-17

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FACTS OF THE CASE: Plaintiff Collect Access LLC seeks default judgment against Defendants RP. Consultants LLC and Ramon Pasos aka Ramon Corey Pasos aka Raymond Pasos in the total amount of \$46,513.81, consisting of \$36,739.64 in principal, \$6,522.54 in interest, \$777.25 in costs, and \$2,474.38 in attorney's fees. The complaint asserts causes of action for breach of contract, money due on an open book account, and money due on an account stated, arising from an alleged July 31, 2023 agreement between Defendants and Plaintiff's assignor Lendr.online, LLC.

PROOF OF SERVICE/DEFAULT: Default previously entered against both defendants on 3/30/26.

PRINCIPAL REQUESTED: \$ 36,739.64

INTEREST: \$ 6,522.54

RECOVERABLE COSTS: \$ 777.25

ATTORNEY'S FEES: \$ 2,474.38

TOTAL: \$ 46,513.81

ANALYSIS:

Entry of default is not void as the plaintiff did not file an amended complaint after default was entered, and neither defendant appeared before default was entered.

There is no pending motion to vacate default.

Plaintiff has dismissed DOES 1-10, all parties against whom a default judgment is not being sought.

The JC Form CIV-100 was used to request court judgment, item 2 is completed, and the declaration of nonmilitary status requirement is filled out as to the individual defendant.

A memorandum of costs is verified on the CIV-100 form.

Plaintiff submitted a proposed judgment on a JUD-100 form.

The principal amount requested in the JUD-100 does not exceed the amount demanded in the Complaint.

A 585 declaration was submitted in support of default judgment.

The Complaint appears to state a valid claim for breach of contract, open book account, and account stated. Plaintiff alleges the existence of a written Agreement for the Purchase and Sale of Future Receipts, assignment from Lendr.online, LLC to Plaintiff, Plaintiff's performance, Defendants' failure to pay, and damages in the amount of \$36,739.64.

PROBLEMS:

Exhibit A to the 585 declaration consists only of the one-page California Offer Summary Disclosure and an e-signature certificate, and does not contain the Agreement for the Purchase and Sale of Future Receipts. It also does not contain the payment history or account statement. The claimed balance of \$36,739.64 exceeds the \$36,500.00 estimated total payment amount shown on the contract document in the record. The requested judgment is not sufficiently supported with documentary evidence.

Plaintiff seeks attorney's fees in the Complaint and JUD-100. However, under LASC Local Rule 3.214, quoted in Plaintiff's declaration, for a default judgment between \$10,000.01 and \$50,000, fees are \$690 plus 3% of the excess over \$10,000. Applied to the \$36,739.64 principal, that equals \$1,492.19, which is less than the requested \$2,474.38. Plaintiff should submit a corrected fee calculation or a declaration explaining why a greater attorney's fees award should be made.

The 585 declaration and Complaint allege liability against both RP. Consultants LLC and Ramon Pasos, but the attached documentary evidence does not prove whether Ramon Pasos signed in his individual capacity at any point. Additionally, without the actual contract, the Court cannot verify the basis for liability against either defendant. Competent evidence of the contract is required.

Conclusion

The OSC is CONTINUED to November 10, 2026 at 9:00 a.m. for Plaintiff to remedy the deficiencies. Plaintiff shall submit its updated default judgment package 10 days before the hearing.

The Court also sets an Order to Show Cause Re Sanctions Against Plaintiff's Counsel in the Amount of \$250 Pursuant to CRC 3.110(g)-(i) for Failure to Timely Obtain Entry of a Default

Judgment for the same day and time. If a corrected default judgment package is not filed by the Court's deadline, counsel is subject to sanctions.

Declarations in response to the Orders to Show Cause are due five court days before the hearings.

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the

matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its discretion.